

Ram Ashis v. State of U.P. — inspection assessment remitted for speaking order; s.127 reserved

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT - C No. - 37770 of 2019 · **Writ disposed; petitioner to appear before the Executive Engineer with objections; speaking final order directed; coercive action stayed; Section 127 appeal left open if aggrieved.**

HEADNOTE

A writ attacking an inspection-based electricity assessment and recovery, alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005, was disposed of without examining the merits. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking final order was required within four weeks; coercive action was stayed for seven weeks or until disposal of the objection; and further challenge was left to the statutory appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

The petitioner, Ram Ashis, filed a writ seeking to quash an assessment order based on an inspection of his premises on 3 April 2019 and to quash undated recovery proceedings for Rs.13,64,122. He alleged that the electricity authorities were taking coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard. The High Court did not try the assessment on the merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

assessment-remitted-for-speaking-order-then-section-127

HOLDING

Where an inspection-based electricity assessment and recovery are challenged as having been issued without hearing and without following the U.P. Electricity Supply Code, 2005, the writ may be disposed of by directing the consumer to appear before the Executive Engineer with objections and evidence, requiring a speaking and reasoned final order within a fixed time, staying coercive action pending that disposal (vacating automatically on default), and leaving the consumer, if aggrieved by the final order, to appeal under Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 3 APRIL 2019 INSPECTION ASSESSMENT AND THE RS.13,64,122 RECOVERY

Merits of the assessment, the recovery citation, and alleged non-compliance with the U.P. Electricity Supply Code, 2005 were not examined; the Executive Engineer was directed to hear objections and pass a speaking final order. ¶ 1